

CONFIDENTIALITY AGREEMENT

XXXXXXX ("Broker") has been retained on an exclusive basis by XXXXXX (the "Seller") with respect to property located on XXXXX consisting of land parcels XXXXX (the "Property").

Owner has provided certain Informational Materials on the property such as financial information. Notwithstanding the foregoing, the term "Information Materials" shall not include: (i) information already in Potential Purchaser's or its Related Parties' possession prior to the date of disclosure or information that subsequently comes into Potential Purchaser's or its Related Parties' possession and is not known by such party to be subject to a legal obligation of confidentiality owed to Potential Purchaser; (ii) information available to the public generally (other than as a result of the breach by Potential Purchaser or its Related Parties of this Agreement); (iii) information independently developed by Potential Purchaser or its Related Parties without reliance on any Information Materials. Broker will not disclose this highly sensitive, confidential and proprietary Informational Materials to Potential Purchaser unless and until the Potential Purchaser agrees to strictly adhere to the terms and conditions of this Agreement by executing this Agreement. Upon Broker's receipt of this executed Agreement, Broker is prepared to provide the Informational Materials for the Potential Purchaser's consideration in connection with the possible purchase of the Property subject to the following conditions.

1. All Informational Materials pertaining to the Property which may be furnished to the Potential Purchaser by Broker shall continue to be the sole and exclusive property of the Owner and Broker. The Informational Materials will be used solely for the purpose of the Potential Purchaser and may not be copied or duplicated without Broker's written consent and must be returned to Broker or destroyed/deleted upon Broker's request ~~or~~ when the Potential Purchaser terminates negotiations with respect to the Property.
2. The Informational Materials may be disclosed to the Potential Purchaser's partners, investors, members, managers, officers, employees, legal counsel, real estate broker, real estate agent and institutional lenders ("Related Parties"), for the purpose of evaluating the potential purchase of the Property. The Potential Purchaser shall maintain in strict confidence and not disclose or transfer to any person, entity or party other than as indicated herein above. The Potential Purchaser is required to ~~disclose the complete terms and conditions of this Confidentiality Agreement in its entirety~~ inform to all "Related Parties about the confidentiality nature of the Information Materials and obtain all "Related Parties" strict adherence to ~~this Agreement~~ the Confidentiality of the Information Materials. The Potential Purchaser shall take all commercially reasonable steps to insure that the confidential information is not disclosed, transferred or utilized in violation of this Agreement. Notwithstanding to the contrary in this Agreement, Potential Purchaser and its Related Parties may disclose the Information Materials if such disclosure is required by applicable court(s) or any court order(s).
3. The Potential Purchaser understands and acknowledges that Broker and the Owner do not make any representations or warranty as to the accuracy or completeness of the Informational Materials and that the information used in the preparation of the Informational Materials was furnished to Broker by others and has not been independently verified by Broker and is not guaranteed as to completeness or accuracy. It is the responsibility of the Potential Purchaser to independently verify the accuracy and completeness and Informational Materials.
- ~~4.~~ The Potential Purchaser hereby indemnifies and holds harmless Broker and the Owner and their respective affiliates and successors and assigns against and from any loss, liability or expense, including reasonable attorney's fees, arising out of any breach of any of the terms of this Agreement. The Potential Purchaser acknowledges that disclosure of any of the Informational Materials in violation of this Agreement would result in an irreparable injury to

Owner and by reason thereof, the Potential Purchaser consents and agrees that the Owner shall be entitled to an injunction to be issued by any court of competent jurisdiction restraining the Potential Purchaser and the "Related Parties" and its affiliates, representatives, agents or employees from committing or continuing such violation without the necessity of posting a bond or proving special damages or irreparable injury.

- ~~5.4.~~ The Potential Purchaser acknowledges that the property has not been offered for sale, but if it is, is subject to withdrawal from the market, change in offering price, prior sale or rejection of any offer because of the terms thereof, lack of satisfactory credit references of any prospective purchaser, or for any other reason whatsoever, without notice. The Potential Purchaser acknowledges that the property is being offered without regard to race, creed, sex, religion, or national origin. The Potential Purchaser agrees that in consideration of Broker supplying Informational Materials, all offers to purchase the Property shall be made through Broker.
- ~~6.~~ This Agreement shall insure to the benefit of and be binding upon the Potential Purchaser, "Related Parties" and all respective successors and assigns. The failure of the Owner to insist in any one or more instances upon performance of any terms or

conditions of this Agreement shall not be construed as a waiver of future performance of any term, covenant or condition and the Potential Purchaser's obligations with respect thereto shall continue in full force in effect. This Agreement shall be governed and construed in accordance with the laws of the State of Ohio. This Agreement shall automatically terminated one (1) year after the Effective Date of this Agreement.

Your signature below constitutes Agreement with the foregoing. Please return one original signed copy of this Agreement to:

Broker

XXXXXXX

Telephone: XXXXX

Fax: XXXXX

| _____

POTENTIAL PURCHASER: ACCEPTED AND AGREED TO THIS _____ DAY _____ OF 20 _____ (“Effective Date”)

Company _____

Signature: _____

Printed Name: _____

Title:: _____

Address:: _____

City, State & Zip: _____

Home Phone # _____

Mobile Phone # _____

Fax # _____

Email: _____

Buyer's Agent _____

Signature: _____

Email _____

Phone: _____